No. 130431

IN THE SUPREME COURT OF ILLINOIS

PEOPLE OF THE STATE OF ILLINOIS, Plaintiff-Respondent, v. JUSSIE SMOLLETT, Defendant-Petitioner.	On Petition for Leave to Appeal from the Appellate Court of Illinois, First Judicial District, No. 1-22-0322 There Heard on Appeal from the Circuit Court of Cook County, Illinois Criminal Department, No. 20 CR 03050-01 The Honorable James B. Linn, Judge Presiding

PETITION FOR LEAVE TO APPEAL

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PRAYER FOR LEAVE TO APPEAL

Petitioner, Jussie Smollett, respectfully petitions this Court to exercise its judicial discretion and review a question with the potential for wide-reaching implications within this State, granting him leave to appeal the December 01, 2023, decision of the Illinois Appellate Court, First District. This petition is brought under the authority of Supreme Court Rules 315 and 612.

STATEMENT OF JURISDICTION

On March 8, 2019, a grand jury returned a 16-count felony disorderly conduct indictment of the Petitioner. On March 26, 2019, the State, through its agent, the Cook County State's Attorney's Office ("CCSAO"), disposed of the matter, stating:

> After reviewing the facts and circumstances of the case, including Mr. Smollett's volunteer service in the community **and agreement** to forfeit his bond to the City of Chicago, the State's motion in regards to the indictment is to nolle pros [sic]. **We believe this outcome is a just disposition and appropriate resolution to this case.** *People v. Smollett*, 2023 IL App (1st) 220322, ¶ 4 (internal quotation marks omitted and emphasis in bold added).

The dismissal of the Petitioner's charges, after his complete performance, was the result of a collaborative effort and agreement reached between the State and the Petitioner. *Id.* at ¶ 156-158. (Justice J. Lyle, Dissenting). Additionally, the impact of this agreement was meant to track the Deferred Prosecution Program. *Id.* at ¶ 165.

On February 11, 2020, a new true bill of indictment was filed against Petitioner, by the Office of Special Prosecutor ("OSP"), charging Petitioner with six counts of disorderly conduct. (C 652 - 658). During the pretrial phase of the new charges, the Petitioner filed a Motion to Dismiss Charges on the theory of breach of contract. (CI 324-336), and a Motion to Compel discovery of hours-long interviews between the OSP and the Osundairo brothers. (C 16, CI 337-345). The trial court denied both motions. (C 1343, R 897-916).

On December 09, 2021, a jury trial began and after an 11-day jury trial, including jury deliberations, Petitioner was convicted of five of the six counts of Disorderly Conduct (a Class 4 felony) pursuant to 720 ILCS 5/26-1(a)(4). (R 1256-2336); (R 2336-2337; R 2337-R 2341); (R 2342-2961); (C 1420, R 3313-3318). On February 10, 2022, Petitioner filed a motion for a new trial, which was subsequently denied. On March 10, 2022, Petitioner was sentenced to two years of felony probation, with the first 150 days to be served as a term of imprisonment inside the Cook County Department of Corrections, ordered to pay $125,000 in restitution to the City of Chicago, and $25,000 in fines. On that same day, the Petitioner was taken into custody to begin the imposed sentence. On March 11, 2022, Petitioner appealed to the First District Appellate Court, filing an emergency motion to stay sentence and/or grant bail pending appeal. On March 16, 2022, Petitioner was released from custody after the First District stayed Petitioner's jail sentence. On December 01, 2023, the Appellate Court affirmed Petitioner's conviction in a 2-1 decision. *People v. Smollett*, 2023 IL App (1st) 220322. A petition for rehearing was timely filed on December 21, 2023. The petition for rehearing was denied by the First District in a 2-1 decision on January 02, 2024.

POINTS RELIED UPON

We must react to serious crimes in meaningful and substantive ways but there is no crime that warrants the destruction of prized values such as fairness or constitutional principles involving the presumption of innocence, due process, and the notion that punishment should fit the crime.[1]

[1] Steven Grossman, *Hot Crimes: A Study in Excess*, 45 Creighton L. Rev. 33 (December, 2011), quoting Stanley Cohen, *Folk Devils and Moral Panics: The Creation of Mods and Rockers 9* (MacGibbon & Kee Ltd. 1972).

What should have been a straightforward case has been complicated by the intersection of politics and public outrage. Yet, it is in these instances, where the true quality of espoused due process norms is put to the test. As Justice Lyle recognized in her dissent, the public outcry surrounding this case has placed due process norms at risk. *People v. Smollett*, 2023 IL App (1st) 220322, ¶ 174 (J. Lyle, dissenting). This Court's review of the important constitutional issues at the center of this case is critical to maintaining integrity in the justice system and ensuring that justice is blind.

Petitioner respectfully asks this Court to grant review because: (1) the Majority Opinion attempts to reinterpret American criminal jurisprudence and overturn binding Illinois Supreme Court and appellate court precedent by erroneously holding that a nonprosecution agreement cannot be enforced within the context of a *nolle prosequi*.[2] As a result, the Majority Opinion threatens to upend all informal and formal deferred prosecution agreements, executed and enforced in Illinois, within the context of a *nolle prosequi*; (2) the Majority Opinion erroneously holds, as an issue of first impression, that the Petitioner's performance of community service and forfeiture of his bail bond did not violate the double jeopardy protection against multiple punishments; (3) the Majority Opinion violates Illinois precedent that the prosecution's failure to provide critical discovery to the defense prior to trial constitutes prejudicial error, and (4) the Petitioner's jail sentence was excessive and the restitution ordered invalid.

[2]The First District's Majority denied Petitioner's timely petition for rehearing which had been based on the grounds that the Majority Opinion had overlooked controlling case law in which the Illinois Second District, following a mandate from the Illinois Supreme Court, had enforced a nonprosecution agreement in a seminal case that fell within the backdrop of a *nolle prosequi*.

ARGUMENT

I. THIS COURT SHOULD GRANT LEAVE TO APPEAL BECAUSE THE MAJORITY OPINION IN THE APPELLATE COURT EFFECTIVELY REVERSES NEARLY A CENTURY OF ILLINOIS CASE LAW WHICH MANDATES THAT AGREEMENTS MADE BETWEEN THE PROSECUTION AND THE DEFENDANT MUST BE HONORED BY THE PROSECUTION WHEN THE STATE HAS RECEIVED THE FULL BENEFIT OF THE DEFENDANT'S COMPLETE PERFORMANCE.

It is well established that an agreement, including a nonprosecution agreement between the State and a defendant, is contractually enforceable when the State has received the full benefit of the defendant's complete performance. *People v. Starks*, 106 Ill. 2d 441 (1985). *See also People v. Johnson*, 372 Ill. 18, 26 (1939).

This principle of enforcing fully performed nonprosecution agreements has been applied in every phase of pre-trial criminal proceedings including in the context of plea agreements, cooperation agreements, and general immunity pre-trial agreements. *See, e.g., People v. Bogolowski*, 317 Ill. 460 (1925) (immunity and plea agreement); *People v. Stapinski*, 2015 IL 118278 (cooperation agreement); *Santobello v. New York*, 404 U.S. 257 (1971) (plea-agreement); *Commonwealth v. Cosby*, 252 A.3d 1092 (Pa 2021) (pretrial immunity agreement). This principle has even been applied where the promise has been unauthorized within the context of a constitutional violation. *See, e.g.*, *People v. Stapinski*, 2015 IL 118278, ¶ 55; 22 C.J.S. Crim. L.: *Substantive Principles* § 110 (2019 update) ("fairness or equity may require the enforcement of an immunity agreement, even though it is procedurally flawed[3]").

[3]Petitioner's constitutional violation is obvious since his liberty was restricted in completing community service and where he agreed to the forfeiture of his $10,000 bail bond. Additionally, the constitutional violation is ongoing since the State continues to enjoy the benefit of its breach via conversion of Petitioner's bail bond, till date, all in violation of U.S. Const. Amend. XIV.

Thus, courts have consistently held that where the defendant has fully performed his or her end of the bargain to the State's benefit, a nonprosecution agreement will be enforced, no matter the context. Furthermore, and as discussed below, Illinois appellate precedent has enforced a nonprosecution agreement within the context of a *nolle prosequi*.

***A. Illinois and other states' appellate courts have applied contractual principles to enforce nonprosecution agreements within the context of a* nolle prosequi.**

In her dissenting opinion, Justice Lyle aptly noted the distinctions between a unilateral *nolle prosequi* (which is not a final disposition and will not bar another prosecution for the same offense) and a bilateral *nolle prosequi*, where the State bargains away that right in exchange for a benefit from the defendant. *See People v. Smollett*, 2023 IL App (1st) 220322, ¶ 153 (J. Lyle, dissenting). Justice Lyle's explanation is consistent with nearly a century of Illinois and American appellate courts enforcing agreements that have been fully performed by a defendant to the State's benefit. *People v. Starks*, 146 Ill. App. 3d 843, 847-848 (2d Dist. 1986) (noting that "recent decisions have drawn a distinction between those situations where the defendant abides by the bargain and those cases where the defendant does not. Here, the defendant fulfilled his part of the agreement…the State will, in such cases, be required to fulfill its part of the bargain"); *see also People v. Johnson*, 372 Ill. 18, 26 (1939).

But contrary to well-established precedent, the Majority Opinion refused to recognize and enforce a bilateral nonprosecution agreement within the context of a *nolle prosequi*. *Id.* at ¶ 32. The Majority Opinion justified this decision by stating:

> Presumably relying on principles of contract law, the dissent asserts that "the rights of the State in a *unilateral nolle*" can be "bargain[ed] away" when "making a *bilateral agreement*." (Emphases added.) However, no Illinois court has ever applied principles of contract law in interpreting the scope of a *nolle prosequi* disposition in a criminal case.

Id. at ¶ 32 (internal quotation marks omitted).

The Majority Opinion is patently incorrect. There is binding Illinois precedent which holds the opposite. *See People v. Starks*, 106 Ill. 2d 441 (1985) (hereinafter, *Starks* '85) and *People v. Starks*, 146 Ill. App. 3d 843 (2d Dist. 1986) (hereinafter, *Starks* '86) (contractually enforcing a nonprosecution agreement within the context of a *nolle prosequi* following the Illinois Supreme Court's mandate in *Starks* '85).

In *Starks* '85, the Illinois Supreme Court held that "the prosecution must honor the terms of agreements it makes with defendants." *Starks*, 106 Ill. 2d at 449. This is particularly so if the defendant has "fulfilled his part of it." *Id.* at 452. The *Starks* case involved a defendant who had been promised dismissal of armed robbery charges if he took and passed a polygraph test. *Id.* at 444. The defendant passed the polygraph and prosecutors reneged on the agreement. *Id.* After recognizing that pretrial agreements are contractually enforceable, the Illinois Supreme Court mandated that the case be remanded to the trial court for an evidentiary hearing to determine whether a nonprosecution agreement existed. *Id.* at 453.

The Illinois Supreme Court in *Starks* '85 never detailed what type of "dismissal" Starks was promised. However, clarification that *Starks* fell within the context of a *nolle prosequi* was provided by the Illinois Second District Appellate Court. To be clear, the Second District Appellate Court tackled the same case after the Illinois Supreme Court's mandated trial court evidentiary hearing found in Starks' favor and dismissed the case. *Starks,* 146 Ill. App. 3d at 844. Specifically, the Second District noted:

The State appeals from the dismissal of a charge of armed robbery (Ill. Rev. Stat. 1981, ch. 38, par. 18 – 2) against defendant, Ronnie Starks. **The trial court found the State had failed to fulfill its promise to nol-pros the charge if defendant passed a**

polygraph examination, and the State contends the court's finding is against the manifest weight of the evidence. *Id.* (Internal omission marks omitted, emphasis in bold and underline added). *See also, id* at 845.

Notably too, in finding that the trial court had not committed error in its evidentiary hearing, the *Starks* '86 Court observed that "the existence of an oral agreement, as well as its terms and conditions, is a question of fact to be determined by the trier of fact." *Id.* at 847.

The *Starks* cases should come as no surprise for two reasons. First, the Illinois Supreme Court in *Starks* '85 built its decision entirely on out-of-state cases involving appellate enforcement of nonprosecution agreements within the context of a *nolle prosequi*. *See Starks*, 106 Ill. 2d at 449 -452. Second, no prosecutor in Illinois has ever had the unfettered ability to re-prosecute a case after a *nolle prosequi*. This is true because the "State may re-prosecute the defendant subject to other relevant statutory or *constitutional defenses*, absent *fundamental unfairness, bad faith, or harassment*." (hereinafter, "fairness protections"). *Smollett*, 2023 IL App (1st) 220322, ¶ 45, (*quoting People v. Hughes*, 2012 IL 112817, ¶ 23). Thus, if the State can bring back charges after assuring the trial court on the record that, "we believe this outcome is a just disposition and appropriate resolution to this case," as was the circumstance in the present case, then the *fairness protections* against reprosecution within the context of a *nolle prosequi* are only being paid *lip service*. *See Smollett*, 2023 IL App (1st) 220322, ¶ 4.

Moreover, enforcing the real intent of the parties in the present case in no way undermines the principle that prosecutors can refile charges after a *nolle*. Certainly, the power to refile charges is activated when charges have been dismissed unilaterally and not when prosecutors have intended to and indeed bargained away their right to bring

back charges *via* bilateral nonprosecution agreements. *Smollett*, 2023 IL App (1st) 220322, ¶ 153 (J. Lyle, dissenting) (citing *State v. Kallberg*, 326 Conn. 1, 160 A.3d 1034, 1042 (Conn. 2017)).

Significantly, the *fairness protections* against reprosecution, within the context of a *nolle prosequi*, do not exist within the context of a motion to strike with leave to reinstate. And yet the Illinois Supreme Court has applied contractual principles in enforcing a nonprosecution agreement within the context of a motion to strike with leave to reinstate. *Johnson*, 372 Ill. at 26. This is critical, as it demonstrates that if contractual principles are to be applied, the mechanical way in which prosecutors dismiss charges is not the focus, rather, the focus is on the true intent of the parties *via a vis* if the State has bargained away its right to bring back charges.

B. The record clearly established that a nonprosecution agreement was entered into between the Petitioner and the State of Illinois and executed and fully performed by the Petitioner to the full benefit of the State.

Apart from ignoring the relevant precedent as stated above, the Majority Opinion erroneously declared:

> The record does not establish that Smollett entered into a nonprosecution agreement with the CCSAO, in which the CCSAO agreed to forgo further prosecution of him in exchange for his performance of community service and the forfeiture of his bond. *Id.* at ¶ 28. (Internal quotation marks).

The Majority Opinion's declaration is perplexing because they never looked for a contractual agreement nor performed a contractual analysis in their opinion. They said so. *See id.* at ¶ 32 (criticizing Justice Lyle's application of contractual principles in her dissent).

If the Majority Opinion had applied contractual principles, the evidence of a nonprosecution agreement would have been easily gleaned from the record. For example,

right there, in the transcript of dismissal of the first indictment, a seasoned Cook County Assistant State's Attorney stated:

> After reviewing the facts and circumstances of the case, including Mr. Smollett's volunteer service in the community **and agreement** to forfeit his bond to the City of Chicago, the State's motion in regards to the indictment is to nolle pros [sic]. **We believe this outcome is a just disposition and appropriate resolution to this case.**
>
> *Smollett*, 2023 IL App (1st) 220322, ¶ 4 (internal quotation marks omitted and emphasis in bold added).

The prosecutor's use of the word "agreement" in relation to Petitioner relinquishing his bail bond clearly demonstrates that there was an agreement between the State and Petitioner. This must be true since the Petitioner could not legally form a contractual agreement with himself. By its very nature, an agreement is bilateral or multilateral; it is never unilateral with one's self.

Furthermore, any questions as to the terms of this "agreement" were answered by the Cook County prosecutor when she stated, "we believe this outcome is a just disposition and appropriate resolution to this case.[4]" And as the dissent noted, the phrases *just disposition* and *appropriate resolution* "denote a finality that would not exist if the State merely sought to refile the charge." *Smollett*, 2023 IL App (1st) 220322, ¶ 173 (J. Lyle, dissenting).

[4]This statement is conspicuously absent from the Majority Opinion. One might conclude its absence is not unrelated to the fact that it negates the erroneous conclusion that a nonprosecution agreement was not clear from the record. At the very least, and assuming arguendo, if the Majority Opinion is correct on the effect of the *nolle prosequi*, then the statement creates an ambiguity since it conflicts with the *nolle prosequi* and such ambiguities should be resolved in favor of the Petitioner. *People v. Weilmuenster*, 283 Ill. App. 3d 613, 625 (2d Dist. 1996). It could also be inferred that when juxtaposed with the *nolle prosequi*, the statement demonstrates a scrivener's error or a mutual mistake; in which case, the true intent of the parties should be enforced. *In re Marriage of Johnson*, 237 Ill. App. 3d 381, 391 (4th Dist. 1992).

Nor can we ignore that the prosecutor's in-court statement was drafted in collaboration with the Petitioner's attorneys and that the Cook County State's Attorney's Office agrees that the intent of the parties was to agree to an agreement that tracked a deferred prosecution. *Smollett*, 2023 IL App (1st) 220322, ¶¶ 156-59; 165-66 (J. Lyle, dissenting).

Any other interpretation of the seasoned prosecutor's words would lead to absurd results since in no obvious scenario can it be reasoned that the Petitioner walked into a courtroom, entered into an agreement with himself to give up his bail bond for temporary relief from prosecution (even though he was out on bail), and coincidentally, at the moment he was making this charitable donation of his bail bond, the prosecutor dismissed his case. *See, e.g.*, *Nutrasweet Co. v. American Nat'l Bank & Trust Co.*, 262 Ill. App. 3d 688, 695 (1st Dist. 1994) (finding that contract construction "interpretation which makes a rational and probable agreement must be preferred.[5]")

The fact that the OSP later gave in to public outcry over the disposition of the initial prosecution has no bearing on the enforceability of the nonprosecution agreement. As one appellate court aptly noted, "the awesome power, vested by the people in the State's Attorney, should not be employed for the purpose of applying balm to a wounded ego or to the fulfillment of a personal vendetta." *State v. Thompson*, 48 Md. App. 219, 222-23, 426 A.2d 14, 16 (1981). *See also Commonwealth v. Cosby*, 252 A.3d 1092 (Pa

[5]At this junction, it should be noted that if indeed Cook County prosecutors did not intend to bargain for a nonprosecution agreement, then the OSP should not have troubled itself, because presumably, the Cook County prosecutors were coming back with a second prosecution. But the OSP interfered with an elected prosecutor's executive discretionary authority because they disagreed with the nonprosecution agreement resolution. (C 1478-1480; C 892); (C 727).

2021) (enforcing a nonprosecution agreement within the context of a high-profile international case involving significant public outrage against a defendant).

The Maryland Appellate Court's declaration against personal vendettas as justification for prosecution is relevant here. The OSP has openly admitted that there was no misconduct, undue influence, or crime committed in the formation of the agreement in the present case but admits that it *disagrees* with the punishment that the Petitioner in this case received from an elected prosecutor's office which exercised well-established discretionary powers. (C 1478-1480; C 892); (C 727) (where the OSP, in its prepared written Information Release to announce the second indictment, stated that it "disagrees with how the CCSAO resolved the Smollett case").

C. The Majority Opinion jettisons the Illinois Supreme Court's* Starks *mandate for a remand of the case for an evidentiary hearing if the existence of an agreement is not clear from the record and there is some proof that there may have been an agreement.

The Majority opinion erroneously declared that "the record in this case is silent regarding any nonprosecution agreement between the CCSAO and Smollett." *People v. Smollett*, 2023 IL App (1st) 220322, ¶ 37. But such a finding, without a complete evidentiary hearing, is erroneous. *See Starks*, 106 Ill. 2d at 453 (*Starks* '85). *See also id.* at ¶ 168 (J. Lyle, dissenting). This is true, since "the existence of an oral agreement, as well as its terms and conditions, is a question of fact to be determined by the trier of fact." *Starks*, 146 Ill. App. 3d at 847 (*Starks* '86).

Notably, the Majority Opinion makes the same mistake the Second District made in *People v. Starks*, 122 Ill. App. 3d 228, 239 (2d Dist. 1983) (hereinafter, *Starks* '83), where that Court declared: "[T]he record here is not complete enough to allow the conclusion that there was, in fact, an agreement or if there was what its terms were." Of course, this declaration was later rejected by the Illinois Supreme Court in *Starks* 85,

wherein the Illinois Supreme Court, *sua sponte*, remanded and ordered an evidentiary hearing even though the record was not clear on the existence of an agreement, and because there was some *proof* of a nonprosecution agreement.[6] *Starks*, 106 Ill. 2d at 447-48, (also observing that the trial court "had refused to consider the pretrial agreement regarding the polygraph examination and refused to allow counsel to make any record pertaining to the agreement"); *Starks,* 146 Ill. App. 3d at 845; *see also People v. Marion*, 2012 IL App (1st) 082465-U ¶ 8 -18 and *People v. Marion,* 2015 IL App (1st) 131011, ¶¶ 1-3, (where Justice Neville, formerly sitting in the First District and authoring a unanimous opinion, reversed and remanded *Marion* for completion of evidentiary hearings, not once, but twice).

Here, as the *Starks* Court found, the record is clear that the parties intended to enter into a nonprosecution agreement. *Smollett*, 2023 IL App (1st) 220322, ¶¶ 156-59; 165-66 (J. Lyle, dissenting); *Starks*, 106 Ill. 2d at 447 (*Starks* '85). The record is also clear that through his trial attorneys' pre-trial motion to dismiss, the Petitioner put the trial court on notice as to the existence of this agreement, *but this motion was denied without being heard on the merits*.[7] R. 912-914. *See also., Smollett*, 2023 IL App (1st) 220322, ¶ 168 (J. Lyle, dissenting). Nor is there a dispute that an agreement existed. *Id.* at ¶¶ 158-59. These facts certainly carry enough weight to trigger an evidentiary hearing and the Majority Opinion erred when it did not mandate one.

[6]Importantly, the *Starks* '85 Court ordered a remand for an evidentiary hearing to determine whether Stark's conviction was to be upheld or reversed. *Starks*, 106 Ill. 2d at 453. (*Starks* '85).

[7]Notably too, in *Starks* 86, the Illinois Supreme Court ordered an evidentiary hearing even though *Starks* brought it up in a supplemental post-trial motion, after his conviction. *Id* at 446. (*Starks* '85).

D. The Majority Opinion rejects nearly a century of Illinois public policy which promotes good faith and fair dealing in our plea-bargaining system, and recognizes the discretionary and independent powers of prosecutors.

In her dissent, Justice Lyle raised public policy concerns as to the implication of allowing the State to breach a fully performed agreement. *Smollett*, 2023 IL App (1st) 220322, ¶¶ 170-175. (J. Lyle, dissenting). Certainly, Justice Lyle's public policy concerns are not outliers. This Supreme Court has found that "if the administrative and prosecuting agencies of the People fail to keep their legitimate agreements, public policy and the great ends of justice require the court to prevent such breaches of faith." *People v. Johnson*, 372 Ill. 18, 26 (1939). The reason for this public policy has been explained by this Supreme Court when it observed, "to dispute the validity of this precept would surely result in the total nullification of the bargaining system between the prosecution and the defense. *Starks*, 106 Ill. 2d at 449 (*Starks* '85).

The negative impact of the Majority Opinion on our plea-bargaining system is clear and present. For example, daily, criminal misdemeanor and felony charges around Illinois are dismissed via a *nolle prosequi* (or sometimes, as is specific to Cook County misdemeanors, *stricken off docket, with leave to reinstate*), after an *informal* agreement for the defendant to complete *independent* community service has been fully performed. Those cases, save for any statute of limitations, are at risk with the Majority Opinion. And as Justice Lyle in her dissent found, even formal deferred prosecution programs won't be spared as a result of the Majority Opinion when she observed:

> The OSP reports indicated that the Cook County State's Attorney's Office, in the 2 years prior to Smollett's disposition, had referred over 5000 individuals into the DPP. I have noted that the guidance from the administrative order is for the State to nol-pros the case after completion of the program. This opinion has the effect of scaring every defendant who entered the DPP and completed it successfully, that the State can reinstate charges against them as long as it does not run afoul of the statute of limitations.

Id. at ¶ 107. (J. Lyle, dissenting) (internal quotation marks omitted).

Furthermore, the Majority Decision runs afoul of well-established discretionary and independent powers of elected prosecutors. *Starks*, 106 Ill. 2d at 449. (*Starks* '85); *United States v. Nixon*, 418 U.S. 683, 693 (1974) (noting that "the Executive Branch has exclusive authority and absolute discretion to decide whether to prosecute a case"). Chaotic results will likewise occur, as future citizen activists (or even newly elected prosecutorial administrations) dissatisfied or offended by an already executed and performed bargain, will roam from county to county in Illinois, causing gridlock, as they seek to overturn such bargains whilst waiving the Majority Opinion in hand as justification. Thus, this Court's review is warranted on this issue.

II. THE EFFECT OF THE PETITIONER'S COMMUNITY SERVICE AND FORFEITURE OF HIS BAIL BOND ON THE DOUBLE JEOPARDY PROTECTION AGAINST MULTIPLE PUNISHMENT WARRANTS THIS COURT'S REVIEW AS AN ISSUE OF FIRST IMPRESSION.

The Double Jeopardy Clause protects defendants from (1) a retrial for the same offense after an acquittal, (2) retrial after a conviction, and (3) multiple punishments for the same offense. *Smollett*, 2023 IL App (1st) 220322, ¶ 42. In rejecting the Petitioner's contention that he was put in double jeopardy with a second prosecution because he was punished already after performing community service and relinquishing his bail bond, the Majority Opinion noted:

> In a jury trial, jeopardy attaches when the jury is impaneled and sworn… In a bench trial, jeopardy attaches upon the first witness being sworn in and the trial court beginning to hear evidence…And, in the context of a guilty plea, jeopardy attaches when the court accepts the defendant's guilty plea. In the instant case…No jury had been impaneled, no witness had been sworn in, no evidence had been introduced, and Smollett had not pled guilty. Because none of these actions occurred, jeopardy did not attach to Smollett's first criminal prosecution.
>
> *Id.* at ¶¶ 43-44.

However, the bright-line rule relied upon by the Majority—which has never been applied to a compromise agreement in Illinois—is contrary to the letter and spirit of the Double Jeopardy Clause, as interpreted by the U.S. Supreme Court. Indeed, as the High Court has explained, imposition of a criminal punishment is itself *another method* by which jeopardy attaches. *See United States ex rel. Marcus v. Hess*, 317 U.S. 537, 548-49 (1943) ("[C]riminal punishment . . . subject[s] the defendant to 'jeopardy' within the constitutional meaning.").

Although no Illinois appellate court has tackled the punishment prong of the Double Jeopardy Clause within the context of a compromise agreement, all other states in the United States that have considered this issue have reached the opposite conclusion as that reached by the Majority in this case. *See, e.g., State v. Monk*, 64 Ohio Misc. 2d 1, 8 (Ohio Com. Pleas 1994) (finding that the multiple punishment prong of the double jeopardy clause was implicated and prosecutors were barred from re-prosecuting a defendant who had completed the terms of a pretrial diversionary agreement); *see also State v. Urvan*, 4 Ohio App. 3d 151 (Ohio Ct. App. 1982) (noting that completing the terms of a pretrial diversion program amounts to criminal punishment and "success in a diversion program is the constructive equivalent of serving a sentence for the crime charged"); *Commonwealth v. McSorley*, 335 Pa. Super. 522 (Pa. Super. Ct. 1984) (although it later turned out that the defendant was ineligible for pretrial diversion, his participation in a safe driving clinic and payment of $50 for such participation in reliance on letter from District Attorney's office directing him to attend the program barred further prosecution of him based on double jeopardy); *State v. Maisey*, 600 S.E. 2d 294 (W. Va. 2004) (completion of community service required by the pretrial diversion order barred further prosecution or punishment of the defendant for the same offense). These holdings

are consistent with the U.S. Supreme Court's explicit directive, 140 years ago, that punishment pursuant to a compromise agreement, even in the absence of a conviction or judgment, bars a second punishment for the same offense. *See United States v. Chouteau*, 102 U.S. 603, 611 (1880).

The Majority Opinion erroneously rejects the opinion of the foreign state cases because they are not binding. *Smollett*, 2023 IL App (1st) 220322, ¶ 43. However, where there is no Illinois law on an issue, our appellate courts look to other jurisdictions for persuasive authority. *Allstate Insurance Co. v. Lane*, 345 Ill. App. 3d 547, 552, (2003). Furthermore, the Majority Opinion erroneously attempts to distinguish these foreign state cases because they involved formal deferred prosecution programs. *Smollett*, 2023 IL App (1st) 220322, ¶ 44. But those cases were focused on whether the activities the defendants performed as part of their agreements rose to the level of punishment, not some non-existent formality clause.[8] In fact, in *McSorley*, it turned out the defendant was not even *eligible* for the pretrial diversion program. *McSorley*, 335 Pa. Super. 522, 530 (Pa. Super. Ct. 1984)

Along the same flawed reasoning, the Majority Opinion attempts to distinguish the U.S. Supreme Court's opinion in *United States v. Chouteau*, 102 U.S. 603, 611 (1880), on the grounds that unlike here, the compromise settlement in *Chouteau* was restitutive and in *full satisfaction* of the monies owed. *Id.* at ¶ 46. However, this is a distorted interpretation of the case because if *Chouteau* was focused on the remedial nature of the penalty (and not whether the fines were punitive and thus, rising to the level

[8] American criminal law jurisprudence has long since recognized the prosecutorial grants of *informal* immunity to defendants. *See, e.g.*, *United States v. Skalsky*, 857 F.2d 172, 175 (3d Cir. 1988); 22 C.J.S. *Crim. L.: Substantive Principles* § 107 (2019 update) (finding that courts recognize informal agreements).

of punishment, as it really was), then the U.S. Supreme Court would not have found that it implicated double jeopardy. *See also United States v. Halper*, 490 U.S. 435 (1989) (concluding that an individual who has been punished in a criminal prosecution may not be subjected to any additional civil sanctions for that same conduct to the extent the sanctions are punitive, as opposed to *remedial*, in nature).

In resolving this issue of first impression in Illinois, the Majority Opinion is in conflict with the U.S. Supreme Court's guidance and other states' holdings on the issue. Thus, the Majority Opinion on this issue should be reviewed, and reversed by this Court.

III. THIS COURT SHOULD GRANT LEAVE TO APPEAL BECAUSE THE MAJORITY OPINION EFFECTIVELY REVERSES THIS COURT'S MANDATE REQUIRING THE DISCLOSURE OF WITNESS STATEMENTS SUBJECT TO AN *IN CAMERA* REVIEW.

The Illinois Supreme Court has repeatedly defined and interpreted the prosecution's obligation under Supreme Court Rule 412 and has held that a prosecutor's notes of witness statements are discoverable subject to the prosecutor's right to have work product excised therefrom. *See People v. Szabo*, 94 Ill. 2d 327, 346-47 (1983); *see also People v. Bassett*, 56 Ill. 2d 285, 291 (1974) (in the event the prosecutor claims that validly protected work product is also contained in the witness's statement, the trial judge can review the material *in camera* for the limited purpose of excising the work-product material); *People v. Manley*, 19 Ill.App.3d 365 (1974) (where the prosecutor claims that the memoranda does not contain substantially verbatim reports of witness; statements, an *in camera* examination is necessary).

In *Szabo*, this Court was faced with a scenario where the prosecutor's notes of witness interviews had been destroyed. Unable to determine if denial of the notes to the defense was prejudicial since the contents of the notes were destroyed, the *Szabo* court first determined whether the notes involved a witness that was central to the prosecutor's

case and thus, potentially important for any defense cross examination. *Szabo*, 94 Ill. 2d at 347. Upon this finding, the Court reversed and remanded with instructions for the trial court to conduct an *in camera* inspection. *Id.* at 350.

The Majority Opinion agrees that the trial court erred in refusing to conduct an *in camera* inspection of the OSP's notes from its interviews with the Osundairo brothers. *Smollett*, 2023 IL App (1st) 220322, ¶ 65. However, the Majority Opinion distinguished *Szabo* and concluded that the error here was harmless because the Osundairos' testimony was not the only evidence tending to establish the Petitioner's guilt. *Id.* at ¶ 65-66. In reaching this conclusion, the Majority Opinion relied on *People v. Young*, 128 Ill. 2d 1, 44-45 (1989), where this Court declined to reverse prosecutorial nondisclosure when it noted that the interview with a prosecutorial witness "was not the only evidence tending to establish" the defendant's guilt and "the denial of the opportunity to use the interview notes in cross-examining [the witness] [did not] [affect] the reliability of the fact-finding process at trial."

The present case is similar to *Szabo* and not to *Young*. Here, as was the case in *Szabo*, the central witnesses on which the OSP's entire case rested were the Osundairo brothers. Although there was ample other evidence tending to show that the Osundairo brothers attacked Mr. Smollett, the ***only*** evidence that the attack was a "hoax" done at Mr. Smollett's behest was the Osundairo brothers' self-serving testimony. Thus, if during their hours-long interview with the OSP, the Osundairo brothers changed their statements multiple times and gave contrary or inconsistent accounts of what they claimed occurred (and the OSP took note of these statements), that would constitute exculpatory, or at the very least, impeachment evidence that the defense should have received for use at trial. Given that the Osundairo brothers' credibility and veracity was the crux of the OSP's case

against Mr. Smollett (and without whom there would be no prosecution against Mr. Smollett), it was ***prejudicial error*** for the trial court to refuse to conduct an *in camera* inspection of the OSP's notes and/or recordings to determine what is discoverable versus actual work product as called for under Supreme Court Rule 412.

The Majority's opinion sets a dangerous precedent for criminal prosecutions. If prosecutors can take witness statements and then make a blanket claim that the entirety of the notes constitutes work product, then Rule 412 and the Illinois Supreme Court rulings cited above are rendered meaningless. The Majority Opinion on this issue should be reviewed (and reversed) by this Court.

IV. THIS COURT SHOULD GRANT LEAVE TO APPEAL BECAUSE THE PETITIONER'S JAIL SENTENCE WAS EXCESSIVE AND THE RESTITUTION ORDERED WAS INVALID.

In the present case, the Majority Opinion erred in upholding the trial court's sentencing because the sentencing was excessive given the nature of the offense(s) charged, and the overwhelming mitigation presented in the sentencing hearing. *See, People v. Brown*, 2015 IL App (1st) 130048, ¶ 42 (2015); (CI 92–CI 104; R3439-R3490). Further, the trial court erred in ordering restitution be paid to the City of Chicago as the charge Mr. Smollett was convicted of, does not allow municipalities or public agencies to be viewed as victims under the restitution statute. *People v. Evans*, 122 Ill. App. 3d 733 (3d Dist. 1984).

For these reasons, this Court should review the Majority Opinion.

V. CONCLUSION

For the reasons stated above, Petitioner prays that this Honorable Court grant him leave to appeal his convictions and sentence.

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CERTIFICATE OF COMPLIANCE

I certify that this brief conforms to the requirements of Rules 341(a) and (b). The length of this brief, excluding the pages or words contained in the Rule 341(d) cover, the Rule 341(h)(1) table of contents and statement of points and authorities, the Rule 341(c) certificate of compliance, the certificate of service, and those matters to be appended to the brief under Rule 342(a), is 20 pages.

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NOTICE OF FILING AND PROOF OF SERVICE

I certify that on February 5, 2024, I electronically filed the foregoing Petition for Leave to Appeal with the Clerk of the Supreme Court of Illinois via an approved Electronic Filing Service Provider, OdysseyeFileIL, which will send copies of the same to all counsel of record listed below at the email addresses indicated on said date, or as soon thereafter as the petition is accepted for filing by the clerk's office. Under penalties as provided by law pursuant to Section 1-109 of the Code of Civil Procedure, the undersigned certifies that the statements set forth in this instrument are true and correct.

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